

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MOSES DAMISA, *Complainant*

v.

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

DOCKET NO. 1967(F)

Served: July 2, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On June 30, 2021, the parties submitted their fifth joint status report, as required by the order issued on June 2, 2021. The parties are engaged in mediation which may continue while the parties complete discovery and file the required briefs. The parties included a proposed briefing schedule which is only modified to avoid weekends. The parties shall follow this schedule:

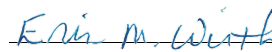
July 15, 2021	All discovery completed.
July 30, 2021	Complainant files brief with proposed findings of fact and appendix.
August 31, 2021	Respondent files opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
September 15, 2021	Complainant files reply brief with responses to Respondent's proposed findings of fact.

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact which shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by email.

3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact which shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be sent by email;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties should consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary. If the parties are able to resolve the proceeding, they should submit a joint motion requesting approval of the settlement with a copy of the settlement agreement.



Erin M. Wirth

Chief Administrative Law Judge